

The Kids Gate — Privacy Policy

Last updated: **[INSERT EFFECTIVE DATE]**

Note for review — delete before publishing. This draft is written for GATE Edutech Solutions Pty Ltd and covers the website (thekidsgate.com) and the Kids Gate mobile apps, and is offered in Australia, the United States, Indonesia and Thailand only — the Services are not sold to or aimed at users in the EU or UK. Items in **[SQUARE BRACKETS]** still need confirmation. A short list of outstanding decisions appears at the end under **"Items still to confirm."** Have a qualified lawyer review this before it goes live — because the service is used by children, the privacy policy is a compliance document, not just a formality.

The short version

The Kids Gate is a learning platform for children aged 5–12. Here is the plain-language summary; the full detail follows below.

- A **parent or guardian** creates and controls the account. We do not knowingly let children sign themselves up.
- From a child we collect only what we need to run their lessons — a **first name or nickname, age or grade level, and their learning activity** (answers, progress, achievements).
- We use a child's answers to **automatically choose what they should learn next**. This is an automated personalisation system. We do **not** use children's data to train artificial-intelligence models, and we do **not** use it for advertising.
- The platform is **ad-free**. We do **not** sell or share your or your child's personal information, and we do **not** build marketing or advertising profiles.
- **You are in control.** As a parent you can view your child's information, share it with their teacher if you want, add their achievement level to a local or national comparison service, and check and correct their lessons and quiz answers — and only a parent can ask us to delete it, at any time, by emailing **support@thekidsgate.com**.

1. Who we are and what this policy covers

This Privacy Policy explains how **GATE Edutech Solutions Pty Ltd** ("The Kids Gate", "we", "us", or "our") collects, uses, shares and protects personal information.

It applies to:

- our website at **thekidsgate.com**; and
- the **Kids Gate** applications for iOS and Android,

together with any related features, dashboards and communications (the "Services").

For the purposes of applicable data-protection law, **GATE Edutech Solutions Pty Ltd is the data controller** of the personal information described in this policy.

Contact details

- Company: GATE Edutech Solutions Pty Ltd (ACN 652 998 635)
- Registered address: 1 Oxley Road, Hawthorn VIC 3122, Australia
- Support: **support@thekidsgate.com**

- Privacy contact: **privacy@thekidsgate.com** [set up this mailbox and forward it to the responsible person before this policy is published]

By using the Services you acknowledge the practices described in this policy. Where the law requires consent (including a parent's consent on behalf of a child), we obtain that consent as described in Section 5.

2. Who uses the Services

- **Parents and guardians** — the account holder. Must be 18 or older and the parent or legal guardian of any child added to the account.
 - **Children aged 5–12** — use the learning content under a profile created and managed by their parent or guardian.
 - **Teachers and schools** — may create their own accounts and, at a parent's or school's request, receive limited learning information (see Section 14).
 - **Website visitors** — anyone browsing thekidsgate.com.
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3. Information we collect

3.1 Information a parent or guardian provides

- **Account details:** name, email address, password/credentials.
- **Teacher and school account details:** for teacher or school accounts, the teacher's or administrator's name, work email address, school name and role. **[CONFIRM exact fields once the school account flow is final — questions pending with the product team.]**
- **Payment and subscription details:** processed through our payment provider (see Section 3.4). We receive confirmation of your subscription and billing status; we do **not** store full card numbers ourselves.
- **Child profile details you enter:** the child's **first name or nickname**, their **age or grade/school year level**, and — where a child is introduced by a school — perhaps their **school**.
- **General location:** your country and, where you provide it or it is derived from your billing or region selection, your state or city. We use this to show relevant pricing and language, and to group leaderboard rankings and progress comparisons (see Sections 4 and 4.2). We do not collect precise (GPS) location.
- **Communications:** anything you include when you contact support or complete a form.

3.2 Information we collect about a child through use of the Services

- Lessons, quizzes and activities completed.
- Answers given, accuracy, and learning progress over time.
- Mastery levels, strengths and topics needing more work.
- Achievements, tokens and rewards earned.

We collect this to operate the learning experience, adapt it to the child, and show progress to the parent. We deliberately keep children's personal information to the minimum needed to provide the service.

3.3 Information collected automatically

When anyone uses the Services we automatically collect certain technical "usage data":

- Device information and, for the apps, device identifiers.
- Browser type and settings; app version.
- IP address and general network/connection information.

- Log data, session information, and how the Services are used (pages/screens viewed, features used, time spent).

On the **website** we collect some of this using cookies and similar technologies (see Section 9). In the **apps** we may collect some of it using standard mobile software development kits (SDKs) for core functionality and analytics: **[LIST APP SDKs — e.g. analytics, crash reporting, push notifications — or state "none beyond those required for core functionality"]**.

3.4 Information collected by our providers

- **Payment provider (Shopify or GoPay).** Subscriptions are processed through a recognised, secure payment gateway — such as **Shopify** or **GoPay** — that handles the customer's payment via the website. The Payment Provider and its own payment processors collect the payment details needed to take payment (such as card or bank details and billing address). This information is handled under the Payment Provider's terms and privacy notice; we receive only the transaction confirmation and related order/subscription records. See Shopify's privacy policy at <https://www.shopify.com/legal/privacy> and GoPay's privacy policy at [\[ADD GOPAY PRIVACY POLICY URL\]](#).

We treat any information we receive from providers in accordance with this policy. We are not responsible for the independent practices of third parties.

3.5 What we do not collect

We do not knowingly collect a child's full name, home address, photograph, precise location, voice or camera recordings, or any special-category/sensitive data, except where you voluntarily include such information in a message to support. Speaking activities in the app are practised out loud, but the app does **not** record or store the child's voice. We do not knowingly collect more information from a child than is reasonably necessary to participate in the Services.

4. How we use personal information

We use personal information to:

- **Provide the Services** — create and manage accounts and child profiles, deliver lessons, save progress, and operate the parent dashboard.
- **Personalise learning** — use a child's answers, accuracy and progress to automatically select suitable lessons and difficulty (see Section 4.1).
- **Operate rewards** — award tokens, achievements and leaderboard placements to encourage consistent learning (see Section 4.2).
- **Communicate with you** — send service and account messages (sign-up confirmation, billing and renewal notices, security alerts, responses to support requests), educational progress updates about your child, and marketing and promotional emails. Marketing is sent **only to parents and guardians — never to children** — and every marketing email includes an unsubscribe link (see Section 13).
- **Keep the Services safe** — detect, prevent and investigate fraud, abuse, and security issues, and enforce our terms.
- **Provide comparative insights** — show parents aggregated, anonymised comparisons (for example, how a child's earned tokens compare with the average for other learners) so progress has context. Other children's data used in these comparisons is aggregated and does not identify any individual child.
- **Improve the Services** — analyse aggregated and de-identified usage to improve content quality and performance.
- **Comply with the law** — meet our legal, tax, accounting and regulatory obligations.

4.1 Automated personalisation (how the "adaptive" learning works)

The Kids Gate uses an **automated system** that reads a child's responses — such as which answers are correct, how accurate they are, and what they have completed — and uses that to **decide which lesson or activity the child should do next** and at what difficulty.

Important points:

- This is **automated decision-making for the sole purpose of personalising education**. It does not produce legal effects or similarly significant effects on the child.
- We do **not** use children's personal information to **train artificial-intelligence models**.
- We do **not** use this information for advertising, marketing, or to build profiles about you or your child for any purpose other than delivering and tracking learning.
- A parent can review the results of this personalisation in the parent dashboard and can contact us with any questions.

4.2 Leaderboards and public display

To make learning motivating, the Services include leaderboards and prize draws.

Leaderboards. A child only appears in leaderboard groupings **when a parent has given consent**. Where a parent has consented, a child may be shown to other users by their **first name or nickname, country, avatar and/or score**, and rankings may be grouped by country, state or city, grade and subject. To protect children, we recommend the use of a **nickname rather than a real name**, and we apply safe-display rules.

Prize draws. Active learners may be entered into monthly prize draws. Prizes are **digital (such as gift-card codes)** and are delivered to the **parent's account email address** — we do not collect any additional personal information (such as a shipping address) to fulfil prizes. If we announce winners, we identify them only by nickname/display name and country; we do not publish any other information about a child. If a future prize requires physical delivery, we will collect the parent's delivery details at that time with the parent's consent.

4.3 Legal bases (for users in Indonesia and Thailand)

Where the law requires a legal basis to process personal information, we rely on:

- **Performance of a contract** — to provide the Services you sign up for.
- **Consent** — for a child's participation (given by a parent or guardian), and for any optional features. Consent can be withdrawn at any time.
- **Legitimate interests** — to keep the Services secure, prevent fraud, and improve our product, balanced against your rights.
- **Legal obligation** — to comply with laws that apply to us.

5. Children's privacy and parental consent

Protecting children is central to how we operate. The Services are designed for children aged 5–12. There is no strict minimum age — a parent or guardian decides whether the content suits their child — and the Services are intended to be set up and supervised by a **parent or legal guardian**.

How consent works. Browsing our website does not require an account. A child cannot create an account — accounts are created only by adults: a parent or guardian, or a teacher or school as described in Section 14. A parent or guardian creates an account by signing up, confirming they are 18 or older and the parent or guardian of any child added. We obtain parental consent through:

- the parent creating and controlling the account and expressly agreeing to the Terms of Service and this policy; and

- a **payment-card transaction** through our payment provider, which confirms the account holder is an adult. In the **United States** this is a **refundable US\$1 verification charge** taken when the trial starts and then refunded; in other regions it is the subscription payment. A monetary card transaction — whether taken immediately or at an agreed future time — is a recognised method of verifying that the account holder is an adult.

[NOTE FOR LEGAL REVIEW: the refundable US\$1 trial charge is designed to meet COPPA's "verifiable parental consent" standard — a card transaction that notifies the account holder is an FTC-recognised method, and refunding it does not affect that. Two follow-ups: (1) because the US trial still requires a card, US users must NOT be told "no credit card required" (though "free trial" remains accurate since the \$1 is refunded — see the marketing item in the checklist); and (2) confirm with the developer that the \$1 charge generates a notification to the cardholder, as the monetary-transaction method requires. Free trials in Australia, Indonesia and Thailand do not require COPPA-style verification.]

A parent's controls. At any time a parent or guardian may:

- review the personal information we hold about their child;
- correct or update it;
- request that we delete it; and
- withdraw consent and close the child's profile or the account.

The parent dashboard provides learning summaries and progress reports. For a complete copy of the information we hold about your child, or to correct or delete it, email privacy@thekidsgate.com or support@thekidsgate.com.

What we share about a child. We do not make a child's personal information public except for the limited leaderboard display described in Section 4.2. As of the effective date of this policy we do not "sell" or "share" (as defined in applicable law) the personal information of any individual under 16, and we do not use it for targeted advertising.

Schools/teachers. The only information we may make available to a child's school or teacher — and only after the parent has activated this option — is information relating to classroom subject material and the answers a child gives to lessons or quizzes (see Section 14).

6. How we share personal information

We do **not** sell your personal information, and we do **not** share it for cross-context behavioural or targeted advertising. We disclose personal information only as follows:

- **To service providers** who process information on our behalf under contract — for example payment processing (**Shopify** or **GoPay**), cloud hosting and storage (**Amazon Web Services**), analytics, email delivery, and customer support tools. They may use the information only to provide services to us.
- **To a child's school or teacher**, only where the parent has activated this and only as described in Sections 5 and 14.
- **Within our corporate group**, if applicable, to operate the business consistently with this policy.
- **For legal and safety reasons** — to comply with the law, respond to lawful requests (such as subpoenas or court orders), enforce our terms, or protect the rights, safety and property of our users, the public, or us.
- **In a business transaction** — such as a merger, acquisition, financing, or insolvency, in which case we will require the recipient to honour this policy or notify you as required by law.

We maintain a current list of sub-processors and can provide it on request.

7. What we do not do

To be clear, The Kids Gate does **not**:

- sell or rent personal information;
 - share personal information for targeted or behavioural advertising;
 - build advertising or marketing profiles about you or your child;
 - serve third-party ads inside the Services (the platform is ad-free); or
 - use children's personal information to train artificial-intelligence models.
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8. International data transfers

We are based in **Australia** and use **Amazon Web Services (AWS)** for hosting. Depending on our configuration, your personal information may be stored in your own country's data region and/or transferred to, stored in and processed in other countries where we and our service providers operate. [IMPORTANT — reconcile with Section 10: if account data is genuinely "maintained only in your domicile country", this section should be tightened to say cross-border transfers are limited accordingly. Confirm the actual AWS region setup per market (e.g. Sydney, Jakarta, Bangkok, US) and which providers (e.g. Shopify, GoPay, Google) receive data in which countries.]

These countries may have data-protection laws different from those in your country. Where local law restricts international transfers — for example, from Indonesia or Thailand — we rely on a recognised safeguard, such as standard contractual clauses, an adequacy recognition, or your consent, before transferring your personal information.

9. Cookies and similar technologies

On our website we use cookies and similar technologies to:

- keep the site working and remember your preferences (such as your chosen language and region); and
- run analytics so we can understand and improve how the site is used.

In the apps, equivalent technologies keep you signed in and remember your settings.

Most browsers accept cookies by default, but you can remove or reject them through your browser settings. Blocking some cookies may affect how parts of the site work. For more detail see our separate **[Cookie Policy]** [\[LINK\]](#), which lists the specific cookies we set.

Because we do not sell or share your personal information or use it for targeted advertising, opt-out preference signals such as **Global Privacy Control (GPC)** do not change how we handle your data. Where a law requires us to treat a GPC signal as an opt-out, we will. **[CONFIRM technical handling once analytics/consent tooling is in place.]**

10. How long we keep information (retention)

We keep personal information only for as long as we need it for the purposes described in this policy, then delete or de-identify it. Our current retention approach is:

- **Active accounts:** we keep account and child-profile information while the account is active, and it is maintained only in your domicile country. [NOTE — verify with the developer/AWS: this states data residency in each user's own country and must (a) match the actual AWS region setup per market and (b)

be reconciled with the international-transfers section (Section 8), which currently describes transfers to Australia and the US.]

- **After cancellation:** we delete or de-identify a child's learning data and profile within **[90 days]** of account closure, unless you reactivate.
- **Payment and transaction records:** retained for approximately **[7 years]** to meet government tax, accounting and financial-record obligations.
- **Support communications:** retained for **[24 months]**.
- **Backups:** securely overwritten on a rolling cycle of **[30–90 days]**.

[These periods are recommended defaults — please confirm or adjust to match your actual practice.]

11. How we protect information (security)

We use reasonable administrative, technical and organisational measures to protect personal information, including [encryption in transit and at rest / access controls limiting which staff can view children's data / secure hosting — CONFIRM which of these you actually apply]. No method of transmission or storage is completely secure, and we cannot guarantee absolute security. Please keep your account credentials confidential and contact us immediately if you believe your account has been compromised. If a data breach occurs, we will notify affected individuals and regulators where required by law (including under the Australian Notifiable Data Breaches scheme).

12. Your rights and choices

Depending on where you live, you may have some or all of the following rights. These rights are not absolute and may be subject to legal exceptions.

- **Access / know** — request a copy of, and information about, the personal information we hold about you or your child.
- **Correct** — ask us to fix inaccurate or incomplete information.
- **Delete** — ask us to delete personal information we hold.
- **Portability** — receive certain information in a portable format.
- **Restrict / object** — ask us to limit or stop certain processing.
- **Withdraw consent** — where we rely on consent, withdraw it at any time (including a parent withdrawing consent for a child).
- **Opt out of sale/sharing/targeted advertising** — although note that we do **not** sell or share personal information or use it for targeted advertising.
- **Lodge a complaint** — with us and/or your local data-protection authority.
- **Appeal** — where available, appeal a decision we make about your request by replying to our response.

To exercise any right, email privacy@thekidsgate.com (or support@thekidsgate.com). We may need to verify your identity before responding, and a parent may exercise these rights on behalf of their child. You may use an authorised agent where the law allows, subject to proof of authorisation. We will respond within the time required by applicable law and will not discriminate against you for exercising your rights.

Region-specific notes

- **Australia (Privacy Act 1988 & Australian Privacy Principles):** You may complain to us first; if unsatisfied, you may contact the Office of the Australian Information Commissioner (OAIC) at oaic.gov.au.

- **United States (COPPA & state privacy laws such as California's CCPA/CPRA):** Parents have the specific rights in Section 5 over their children's information. California residents have rights of access, deletion, correction, and to opt out of sale/sharing — noting we do not sell or share.
 - **Indonesia (Personal Data Protection Law / UU PDP No. 27 of 2022):** You have rights of access, correction, erasure, and withdrawal of consent, and may lodge complaints with the relevant authority.
 - **Thailand (PDPA B.E. 2562):** You have rights of access, correction, erasure, restriction, objection, portability, and to withdraw consent, and may complain to the Personal Data Protection Committee.
 - **EU/UK:** The Services are not offered to, or aimed at, users in the EU or UK, and we do not knowingly process their personal information. If you believe we hold your data, contact us and we will delete it.
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13. Marketing and communications preferences

We send three kinds of communications to parents and guardians:

- **Service and account messages** — billing and renewal notices, security alerts and support responses. These are necessary to provide the Services and cannot be opted out of while you hold an account.
- **Educational progress updates** — summaries and reports about your child's learning.
- **Marketing and promotional emails** — when you create an account you are subscribed to these. You can **unsubscribe at any time** using the link included in every marketing email, or by contacting us. We never send marketing communications to children.

[NOTE FOR LAWYER: automatically subscribing new accounts to marketing is generally defensible in Australia (inferred consent under the Spam Act 2003 for existing customers), and because we no longer serve the EU/UK the GDPR opt-in issue falls away. Indonesia's UU PDP and Thailand's PDPA still lean toward explicit consent, so consider an opt-in checkbox for those two markets. Every marketing email must carry a working unsubscribe link and clear sender identification (Spam Act requirement).]

14. Schools and teachers

Where a parent or school activates the optional teacher/school feature, a teacher or school may be given access to information relating to **classroom subject material** and the **answers a child provides** to lessons and quizzes — and nothing more. Where a school provides or manages student information, responsibilities between the school and The Kids Gate will be set out in the applicable school agreement. **[CONFIRM whether, for school-managed accounts, the school acts as the data controller and The Kids Gate as processor.]**

15. Third-party links

The Services may link to websites or platforms we do not control. We are not responsible for the privacy practices or content of those third parties. Please review their privacy policies before providing information to them.

16. Changes to this policy

We may update this policy to reflect changes in our practices or for legal, operational or regulatory reasons. We will post the updated policy with a new "Last updated" date and, where required by law, take additional steps to notify you (for example, by email or an in-app notice). **[CONFIRM how you will notify existing users of**

17. Contact us

If you have questions about this policy or wish to exercise your rights:

- **Email:** support@thekidsgate.com
- **Post:** GATE Edutech Solutions Pty Ltd, 1 Oxley Road, Hawthorn VIC 3122, Australia

For the purposes of applicable data-protection law, the data controller is **GATE Edutech Solutions Pty Ltd**.

Items still to confirm before publishing

(Working checklist — remove this section before the policy goes live.)

Highest-priority items (from CEO answers, 2026-07):

1. ~~COPPA consent gap~~ — RESOLVED per CEO: the **US trial now costs US\$1**, a card transaction that serves as COPPA-recognised verifiable parental consent (Section 5). Developer follow-up: confirm the \$1 charge notifies the cardholder.
2. **"No credit card required" marketing vs the US trial** (NEW — action needed) — CEO confirmed the US\$1 charge will be **refunded**, so the US can still be called a "free trial", but it still requires a card, so the **"No credit card required"** line on the homepage and pricing pages must be removed/replaced for US visitors. Suggested US copy: "Free 30-day trial — a refundable \$1 verifies you're a parent." Developer/marketing action on the theme copy (not yet applied).
3. ~~EU/UK & privacy mailbox~~ — RESOLVED per CEO: the **EU/UK will be blocked** and not sold to (developer to block EU/UK sign-ups at checkout; Terms of Service to state the Services are offered in AU/US/ID/TH only; EU/UK references removed from this policy). Privacy contact = **privacy@thekidsgate.com** (create and forward the mailbox before publishing).

Awaiting answers (product team / Ziad):

4. **Leaderboard display** (Section 4.2) — RESOLVED that participation is **opt-in by parental consent**. Still confirm the exact fields shown for a child and whether leaderboards are public or login-only.
5. **Schools** (Sections 3.1 and 14) — school account fields, whether schools upload/manage student data (controller vs processor), and whether any student information is shared with Cambridge or other curriculum providers.
6. **Push notifications** — sent to parent devices, child devices, or both? Affects Sections 3.3 and 4.

Standard items:

7. **Effective date.** (ACN confirmed: 652 998 635. Add ABN if/when relevant.)
8. **Retention periods** (Section 10) — confirm or adjust the recommended defaults.
9. **Hosting** — provider confirmed as **AWS**. Still confirm the data-region setup per market and reconcile the "domicile country" residency claim (Section 10) with the international-transfers wording (Section 8). Also add the **GoPay privacy-policy URL** in Section 3.4 and confirm which markets GoPay vs Shopify serve.
10. **App SDKs** (Section 3.3) — list analytics/crash-reporting/push SDKs, or confirm none beyond core functionality.
11. **Security measures** (Section 11) — confirm which apply (encryption, access controls, etc.).
12. **Cookie Policy** — published alongside this policy; confirm GPC handling (Section 9).
13. **How users are notified of changes** (Section 16).

14. Legal review — CEO has confirmed review will happen shortly after launch rather than before. Given that, items 1 and 2 above are the ones that most warrant attention *before* launch; the rest can reasonably wait for the post-launch review.

Resolved: microphone/voice (not recorded — Section 3.5); prize draws (digital gift-card codes — Section 4.2); state/city location (disclosed — Section 3.1); one policy covers website + iOS + Android (Section 1); deletion and consent-withdrawal rights (Section 5); renewals auto-renew with advance notice (Terms of Service Section 4.2).